

## TEMPORARY CONSTRUCTION EASEMENT

KNOW ALL PERSONS BY THESE PRESENTS that, Whitney Ranch Third & Fourth Filing, LLC ("Grantor"), whose address is 6636 Cedar Avenue South, Suite 300, Richfield, Minnesota 55423, in consideration of the sum of Two Hundred Fifty Dollars (\$250.00) and other good and valuable consideration, receipt and sufficiency of which is hereby acknowledged by and between the parties, does hereby grant to the City of Cheyenne, Wyoming a municipal corporation ("City"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and to its successors and assigns, a temporary construction easement, legally described on **Exhibit A** ("Easement Area") attached hereto and incorporated herein.

### RECITALS

WHEREAS, the City desires to obtain a temporary construction easement for the purposes of locating, constructing, improving, and completing other necessary work as part of the DELL RANGE/VAN BUREN AVENUE IMPROVEMENTS PROJECT, including, but not limited to, the space necessary for the operation and storage of equipment and the movement of a work force, over, upon and across the described easement, together with the right of ingress and egress;

WHEREAS, the Grantor states that it is the lawful owner of the real property described herein that it has good and lawful right and authority to grant, sell, and convey said property, or any part thereof, and that it warrants the title of said property;

WHEREAS, the Grantor is willing to grant such a temporary construction easement to Grantee on and subject to the terms and conditions of this agreement; and

WHEREAS, the Grantee agrees to surrender possession of the premises upon completion of the project, and to leave the premises in substantially the same or better condition than it was on the date this easement was executed. However, it is understood that grading changes may exist upon completion of the project.

NOW, THEREFORE, in consideration of the foregoing premises and the mutual agreement of the parties hereto, the parties hereby agree as follows:

1. **Temporary Construction Agreement.** Grantor executes this in favor of City, its successors and assigns, the right and privilege to a temporary construction easement in the Easement Area for the purposes of locating, constructing, improving, and completing other necessary work as part of the DELL RANGE/VAN BUREN AVENUE IMPROVEMENTS PROJECT, including, but not limited to, the space necessary for the operation and storage of equipment and the movement of a work force, over, upon and across the described easement. Such grant includes all rights and privileges necessary or convenient for the full enjoyment and use thereof for the above-mentioned purposes including, but not limited to, the right of ingress and egress over Grantor's adjoining property to exercise the explicit and implicit rights granted herein by this agreement.

2. **Modification.** The Grantor shall be prohibited from altering or placing anything in the Easement Area which shall obstruct or impede the City's temporary use of the area for the purpose of construction.

3. **Duration.** This Temporary Construction Easement shall commence upon the date it was executed and shall automatically expire one (1) year from the date rendered hereof or upon completion of the above referenced project, whichever event is the latest to occur.

4. **Shared Use.** The Grantor reserves the right to make any use of the Easement Area which is not inconsistent with the rights herein conveyed to the City, and which does not interfere with the aforementioned purposes of the construction of the DELL RANGE/VAN BUREN AVENUE IMPROVEMENTS PROJECT by the City.

It is understood and agreed that the enforcement and conditions of this agreement, and all rights contained herein, shall be strictly reserved to the Grantor and the City. Nothing contained in this agreement shall give any claim or right whatsoever by any third person or entity. It is the express intention of the Grantor and the City that any such person or entity, other than the Grantor or the City, that receives a service or benefit under this agreement shall be deemed an incidental third-party beneficiary only.

This grant of the Easement Area is binding upon the heirs, executors, administrators, successors, and assigns of the parties hereto.

[THIS SPACE INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this  
\_\_\_\_\_ day of \_\_\_\_\_, 2024.

GRANTOR:

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Whitney Ranch Third & Fourth Filing, LLC

STATE OF WYOMING            )  
                                          ) ss.  
COUNTY OF LARAMIE        )

Subscribed and sworn to before me this \_\_\_\_\_ day of \_\_\_\_\_, 2024, by  
\_\_\_\_\_ on behalf of Whitney Ranch Third & Fourth Filing, LLC.

Witness my hand and official seal.

\_\_\_\_\_  
Notary Public

My commission expires: \_\_\_\_\_

CITY OF CHEYENNE:

By: \_\_\_\_\_  
Patrick J. Collins, Mayor

STATE OF WYOMING            )  
                                          ) ss.  
COUNTY OF LARAMIE        )

Subscribed and sworn to before me this \_\_\_\_\_ day of \_\_\_\_\_, 2024, by  
Patrick J. Collins, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

\_\_\_\_\_  
Notary Public

My commission expires: \_\_\_\_\_

## **EXHIBIT "A"**

**Whitney Ranch Third & Fourth Filing, LLC – Quit Claim Deed – Bk. 2737, Pg. 1303**

### **TEMPORARY CONSTRUCTION EASEMENT:**

A portion of that parcel described in Quit Claim Deed recorded in Book 2737, Page 1303 of the Laramie County Clerk's Office, further described as follows:

Beginning at the Southeast corner of Section 23, Township 14 North, Range 66 West, 6<sup>th</sup> PM; thence N89°16'58"W a distance of 40.00 feet on and along the Southerly Section line to a point, thence N0°43'02"E a distance of 40.00 feet to the **true point of beginning** of this easement parcel; thence on and along the Northerly right of way line of Dell Range Blvd., paralleling the Section line N89°16'58"W a distance of 2,065.82 feet; thence N0°43'02"E a distance of 351.50 feet; S89°16'58"E a distance of 430.06 feet; thence S0°43'02"W a distance of 216.50 feet; S89°16'58"E a distance of 601.50 feet; thence S0°43'02"W a distance of 90.00 feet; S89°16'58"E a distance of 1034.26 feet; thence S0°43'02"W a distance of 45.00 feet to the point of beginning, containing 278,910.3 square feet or 6.4 acres more or less.